

1. Introduction

Appendix A of Annex 9 of Commission Delegated Regulation (EU) 2016/341 supplementing Regulation (EU) No 952/2013 of the European Parliament and of the Council as regards transitional rules for certain provisions of the Union Customs Code where the relevant electronic systems are not yet operational and amending Delegated Regulation (EU) 2015/2446 (TDA) [ex-Annex 30a] provides that goods description for summary declarations is "a plain language description that is precise enough for Customs services to be able to identify the goods. General terms (i.e., "consolidated", "general cargo" or "parts") cannot be accepted. A list of such general terms will be published by the Commission. It is not necessary to provide this information where the Commodity code is provided." The object of these guidelines is to meet the legal requirement to publish such a list.

This legal requirement stems from the need for customs administrations to be able to base their risk-analysis on adequate descriptions of goods where a commodity code is not provided by the person that lodges the summary declaration. In those cases, too vague a description would not provide Customs administrations with the means to identify consignments which might represent risks for the Union and its citizens; this might lead to unnecessary and costly hiccups in the supply chain; such as physical examinations of the goods concerned, in order to ascertain their real nature.

The list of generic, unacceptable terms and the suggested alternatives that would be acceptable by customs, hereafter referred to as "the list", is contained in the Annex to these guidelines.

2. Principles

- 2.1 The list is not of an exhaustive nature and aims at providing examples of unacceptable and acceptable wordings that are meant as a guidance.
- 2.2 The list is by nature dynamic; Everyday practice will show that new unacceptable terms will be identified and will need therefore to be added to the list as time goes by. This dynamic aspect of the list will require a certain level of maintenance by the Commission in coordination with Member States.
- 2.3 By virtue of the multilingual nature of the EU, the list covers all official languages of the Union and is therefore translated in all those languages.

3. Publication

Given its dynamic nature, and the importance to provide quick updates, the list needs to be published on the internet, in any respect on TAXUD website, for the benefit of all potential interested parties.